

# OpenAI\_gpt-5.6-sol\_ Unauthorized Practice of Law Comm. v. Prog

## Case

Unauthorized Practice of Law Comm. v. Prog, 761 P.2d 1111 (Colo. 1988)

## Domain

Foreclosure

## Model

OpenAI gpt-5.6-sol

## Jurisdiction

The user did indicate their jurisdiction.

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## Turn 1

### Question

I was late on my mortgage payments and the bank is now trying to sell my property through a foreclosure proceeding. They filed a motion saying they have a power of sale pursuant to the deed of trust on July 29th. I don't know what that means but on September 10th they filed another motion to try to sell our other piece of property. My husband and I own the land together but we can't afford a lawyer, so we are hoping to represent ourselves. I live in Colorado. Which pleadings should I file in court?

### Model reasoning

#### Clarifying Colorado Rule 120

I need to recall the details about Colorado Rule 120, which pertains to the motion for an order authorizing a sale under a power in an instrument. It requires serving notice at least 14 days prior to the hearing, and responses must be filed no later than 7 days before. Previously, the rule stated different timelines, with motions set for hearings 21-35 days later. I'll clarify the current requirements regarding responses and possible SCRA statements. There are implications for seeking to vacate an order if necessary.

#### Exploring Colorado's Cure/Reinstatement Rules

I'm considering the process of cure or reinstatement via a public trustee under Colorado statute 38-38-104. There seems to be a requirement for the intent to cure to be given at least 15 calendar days before a sale. The notice must also be communicated before that deadline, and funds should be secured by noon the day prior. Additionally, I need to clarify that redemption for owners has been

eliminated. It's essential to ensure that the deed of trust includes a proper legal description of the property involved.

### Model response

What you describe is likely a **Colorado Rule 120 proceeding**. The lender is asking the district court for an **Order Authorizing Sale** under the “power of sale” in the deed of trust. It is not an ordinary lawsuit, so the usual pleading generally is **not an Answer**.

### What to file

For **each motion, case number, and property**, file:

#### **Response and Objection to Motion for Order Authorizing Sale Under C.R.C.P. 120 and Request for Hearing**

File it in the court shown on the motion, under the same case number. The response should:

1. Identify you and your ownership interest.
2. Admit or deny the important allegations.
3. State specific reasons the sale should not be authorized, such as:
  - Payments were made or the stated default/amount is incorrect.
  - The lender failed to credit payments or comply with required notices.
  - The moving party has not shown it is entitled to enforce the debt or deed of trust.
  - The deed of trust does not cover the property identified in the motion.
  - The second property was not pledged as security for this loan.
  - The legal description, borrower, loan, or property is incorrect.
  - You or your husband are protected by the Servicemembers Civil Relief Act.
4. Attach supporting documents, including deeds of trust, payment records, notices, correspondence, and relevant portions of closing documents.
5. Specifically request a hearing and ask the court to deny the motion.
6. Include a **certificate of service** showing that you sent a copy to the lender's attorney.

A simple title and request could read:

“Respondents object to the Motion for Order Authorizing Sale and request a hearing under C.R.C.P. 120. There is not a reasonable probability that a default justifying sale exists because: [list specific facts]. Respondents further dispute that the deed of trust secures the property described in the motion. Respondents request that the motion be denied.”

### Important deadline

The notice should give a response deadline, commonly tied to the scheduled hearing. If no timely response is filed, the court may authorize the sale without a contested hearing. Because July 29 and September 10 may already have passed, immediately:

- Check each case on the Colorado court docket or call the court clerk.
- Ask whether an order authorizing sale has already been entered.
- Contact the county public trustee to determine whether a sale is scheduled.

- File a separate response in each proceeding; do not assume one response covers both properties.

Each spouse should sign the response or file separately. A self-represented spouse generally cannot act as the other spouse's lawyer.

### **If an order has already been entered**

A Rule 120 order generally is not handled through an ordinary appeal and does not finally determine all defenses. Depending on the circumstances, possible filings may include:

- A motion to set aside or vacate the order based on lack of notice or another procedural defect; and/or
- A separate civil complaint challenging the foreclosure, accompanied by a **motion for temporary restraining order or preliminary injunction under C.R.C.P. 65** before the sale occurs.

Those steps are substantially more complicated, and merely filing a lawsuit does **not** automatically stop a foreclosure sale.

Call the **Colorado Foreclosure Hotline at 1-877-601-HOPE (4673)** and **Colorado Legal Services** immediately. A HUD-approved housing counselor may also help with cure, modification, or other loss-mitigation options. Bring both motions, both deeds of trust, the promissory note, payment history, all default notices, and any scheduled sale notices.

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## **Turn 2**

### **Question**

Can you please help me write them.

### **Model reasoning**

#### **Clarifying deadlines**

I'm checking on a deadline, and it seems to be outdated — I think it's already July or September 2025. I need to emphasize whether the order was entered or if a sale is imminent. Just responding with that information alone might not be enough for clarity. I should make sure to highlight key points in my answer to ensure all details are effectively communicated. Let's get this sorted out!

### **Model response**

Yes. Below is a Colorado **C.R.C.P. 120 Response and Objection** template. Prepare and file a **separate response for each case/property**, using the exact caption and case number printed on each motion. Do not include arguments that are not factually true.

If both you and your husband are representing yourselves, **both should sign**. One spouse generally cannot represent the other.

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**Template: Response and Objection to Motion for Order Authorizing Sale**

DISTRICT COURT, \_\_\_\_\_ COUNTY, COLORADO  
Court Address: \_\_\_\_\_

In the Matter of the Motion of:

\_\_\_\_\_,  
[Copy the name exactly as it appears on the motion]

For an Order Authorizing Sale Under C.R.C.P. 120

Regarding the Property Located at:

\_\_\_\_\_  
\_\_\_\_\_

▲ COURT USE ONLY ▲

Case Number: \_\_\_\_\_  
Division: \_\_\_\_\_ Courtroom: \_\_\_\_\_

RESPONDENTS' RESPONSE AND OBJECTION TO MOTION  
FOR ORDER AUTHORIZING SALE UNDER C.R.C.P. 120  
AND REQUEST FOR HEARING

Respondents, [YOUR FULL NAME] and [HUSBAND'S FULL NAME],  
appearing without attorneys, submit this Response and Objection to the  
Motion for Order Authorizing Sale and state as follows:

1. Respondents are owners of, and have an interest in, the property located at:

\_\_\_\_\_  
\_\_\_\_\_

2. Respondents received a Motion for Order Authorizing Sale concerning  
this property on or about \_\_\_\_\_.

3. Respondents object to the requested order and request a hearing under  
C.R.C.P. 120.

4. Respondents dispute that there is a reasonable probability that a default  
or other circumstance authorizing the sale exists for the following  
specific reasons:

a. \_\_\_\_\_  
\_\_\_\_\_

b. \_\_\_\_\_  
\_\_\_\_\_

c. \_\_\_\_\_  
\_\_\_\_\_

5. [USE ONLY IF TRUE] Respondents dispute the amount claimed to be due. Specifically, the moving party has failed to credit the following payments, or its calculation is otherwise incorrect:

\_\_\_\_\_  
\_\_\_\_\_

Copies of available payment records are attached as Exhibit \_\_\_\_\_.

6. [USE ONLY IF TRUE] Respondents dispute that the moving party has demonstrated that it is the party entitled to enforce the debt and deed of trust because:

\_\_\_\_\_  
\_\_\_\_\_

7. [USE FOR THE SECOND PROPERTY IF TRUE] Respondents dispute that the deed of trust identified in the motion encumbers the property described in the motion. Respondents did not pledge this property as security for the loan, and/or the legal description in the deed of trust does not include this property. Specifically:

\_\_\_\_\_  
\_\_\_\_\_

A copy of the relevant deed of trust and/or property deed is attached as Exhibit \_\_\_\_\_.

8. [USE ONLY IF TRUE] The moving party failed to provide or properly serve a notice required by the loan documents or applicable law. Specifically:

\_\_\_\_\_  
\_\_\_\_\_

9. [USE ONLY IF TRUE] Respondents attempted to cure the claimed default, but the moving party rejected, returned, or failed to credit the payment. Specifically:

\_\_\_\_\_  
\_\_\_\_\_

10. [USE ONLY IF TRUE] A loss-mitigation or loan-modification application was submitted on \_\_\_\_\_. Its current status and relevance to the requested sale are as follows:

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11. [USE ONLY IF APPLICABLE] The following Respondent is currently in military service or is otherwise entitled to protection under the Servicemembers Civil Relief Act:

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12. Respondents request an opportunity to present evidence and arguments concerning the claimed default, the moving party's right to enforce the deed of trust, and whether the deed of trust covers the property described in the motion.

WHEREFORE, Respondents respectfully request that the Court:

- A. Set this matter for a hearing under C.R.C.P. 120;
- B. Deny the Motion for Order Authorizing Sale;
- C. Alternatively, refrain from authorizing the sale until the moving party proves that a default or other circumstance authorizing sale exists and that it is entitled to enforce the deed of trust against this property; and
- D. Grant any other relief the Court determines appropriate.

Respectfully submitted on \_\_\_\_\_, 20\_\_\_\_.

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[YOUR FULL NAME]

Address: \_\_\_\_\_

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Telephone: \_\_\_\_\_

Email: \_\_\_\_\_

Respondent, self-represented

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[HUSBAND'S FULL NAME]

Address: \_\_\_\_\_

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Telephone: \_\_\_\_\_

Email: \_\_\_\_\_

Respondent, self-represented

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### **Certificate of service**

Place this at the end of each response:

## CERTIFICATE OF SERVICE

I certify that on \_\_\_\_\_, 20\_\_\_\_, I served a true and correct copy of this Response and Objection upon the following by:

- ☐ Colorado Courts E-Filing
- ☐ U.S. Mail, postage prepaid
- ☐ Hand delivery
- ☐ Other authorized method: \_\_\_\_\_

Name of lender's attorney: \_\_\_\_\_

Law firm: \_\_\_\_\_

Address: \_\_\_\_\_

Email, if served electronically: \_\_\_\_\_

\_\_\_\_\_  
Signature

### What to write in paragraph 4

Use specific facts, not just “we cannot afford the payments.” For example, if true:

The motion states that no payment was received after March 2025, but Respondents made payments of \$\_\_\_\_\_ on April \_\_\_\_ and May \_\_\_\_\_. Copies of the bank statements and receipts are attached.

Or:

The deed of trust attached to the motion contains the legal description for [first property], but the motion asks the Court to authorize sale of [second property]. The second property's legal description does not appear in that deed of trust.

Or:

Respondents dispute the amount claimed because the payment history includes \$\_\_\_\_\_ in charges that are not explained and does not credit the payment made on \_\_\_\_\_.

A pending modification request alone may not defeat a Rule 120 motion, so describe any related notices, written promises, accepted payments, deadlines, or errors rather than relying only on “we applied for assistance.”

### Attachments

Attach copies—not originals—of documents supporting the objection, labeled:

- **Exhibit A:** Deed of trust
- **Exhibit B:** Deed or legal description for the property
- **Exhibit C:** Payment records
- **Exhibit D:** Default or acceleration notices
- **Exhibit E:** Relevant lender correspondence

Black out Social Security numbers, complete bank-account numbers, birth dates, and other protected personal information.

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### Filing steps

1. Check whether the July 29 and September 10 filings have **different case numbers**. If so, file one response in each case.
2. Copy the caption exactly from each lender motion.
3. File with the district court clerk or through Colorado's approved self-represented e-filing system, if available.
4. Serve the lender's attorney and complete the certificate of service.
5. Keep a filed copy.
6. Confirm the hearing date and whether you must appear in person or remotely.

If the response deadline has passed, file it immediately but understand that the court may already have entered an order. Ask the clerk for the docket and copies of any order, and contact the county public trustee to learn whether a sale date has been set. If an order has already been entered or a sale is imminent, this template alone may not stop the sale.

To tailor the language, use the exact title of each motion, the case numbers, the response/hearing deadlines, and the relevant portions of each property's legal description and deed of trust. Do not post account numbers or other sensitive information.

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## Turn 3

### Question

The company is acting unfair and I think some of their employees might be doing things illegally. Would it be a good idea to add on a civil suit to show the lender is not very legitimate?

### Model response

Usually, **no—not merely to show that the lender is “not legitimate.”** A Colorado C.R.C.P. 120 foreclosure proceeding has a narrow purpose: whether there is a reasonable probability of a default or other circumstance permitting sale. It generally is **not the place to add counterclaims for damages**, and filing a separate civil case does **not automatically stop the foreclosure**.

### When alleged misconduct belongs in the Rule 120 response

Include the conduct if you have specific facts showing that:

- Payments were misapplied or the default amount is false;
- Documents, signatures, assignments, or declarations used in the foreclosure were forged or materially inaccurate;
- The company seeking foreclosure is not entitled to enforce the note or deed of trust;
- The deed of trust does not cover one of the properties;

- Required notices were not sent; or
- A legally enforceable loss-mitigation restriction prevents the sale.

State facts rather than conclusions. For example:

“The motion relies on a payment history stating that no payment was received after March 1. Respondents’ bank records show that the servicer accepted payments of \$\_\_\_ on April 3 and \$\_\_\_ on May 2. Those payments do not appear in the payment history attached to the motion.”

Or, if supported by evidence:

“Respondents dispute the accuracy and authenticity of the assignment dated \_\_\_\_\_. The assignment identifies \_\_\_\_\_ as the signer, but [describe the specific discrepancy and supporting document]. Respondents request that the moving party produce competent evidence showing its entitlement to enforce the obligation.”

Avoid writing that employees “committed fraud,” “forged documents,” or committed crimes unless you can identify the particular document, statement, person, date, why it is false, and the evidence supporting that assertion.

### **When a separate civil suit may be appropriate**

A separate lawsuit may be warranted if you have a recognized legal claim, supporting evidence, and resulting injury—for example, certain violations involving servicing errors, false representations, debt collection, discrimination, or a breach of the loan documents. The proper defendants may differ from the lender; they could include the loan owner, servicer, trustee, or another company.

If a sale is imminent, stopping it ordinarily requires more than filing a complaint. You may need a **motion for temporary restraining order and preliminary injunction under C.R.C.P. 65**, supported by a verified complaint or affidavits. You generally must demonstrate matters such as a substantial likelihood of success, immediate irreparable injury, and why equitable relief is justified. The court may require a bond. Recording a notice of lis pendens or submitting complaints to regulators also does not automatically stop the sale.

Do **not** file a suit solely to delay the foreclosure or pressure the company. Unsupported allegations can be dismissed and can expose you to costs, attorney fees, or sanctions.

### **A safer approach now**

1. Put every concrete foreclosure-related fact in each Rule 120 objection.
2. Attach payment records, notices, the note, deeds of trust, assignments, and correspondence.
3. Ask for a hearing and require the moving party to establish the default and its right to enforce the deed of trust.
4. Preserve unrelated claims with language such as:

“Respondents reserve any claims and defenses outside the limited scope of this Rule 120 proceeding. No such claim is waived by this response.”

5. Send a written **notice of error/request for information** to the mortgage servicer if there are servicing errors, using the special address identified on the mortgage statement for such

requests. Keep proof of delivery.

6. Report documented misconduct, where appropriate, to the **Consumer Financial Protection Bureau, Colorado Attorney General**, or the relevant Colorado mortgage regulator—but do not assume a complaint will postpone the sale.
7. Immediately obtain the docket and sale date. If an order has already been entered or the sale is close, contact **Colorado Legal Services** and the **Colorado Foreclosure Hotline, 1-877-601-4673**, because emergency-injunction procedure is difficult and time-sensitive.

The strongest argument is not that the company is generally unfair; it is that a **specific, provable act means the claimed default, amount, lien, or right to sell this particular property is incorrect.**

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